

Standard Operating Procedure - Flat transfer of ownership at Shilpakanan-Durgapur

1. First, check if there are any dues against the seller's flat with the Housing Board or Shilpakanan Association. The seller must clear those dues first. Also, check whether the flat's mutation is done in the DMC. If it is not done, the seller has to get it done.
2. The seller must give a declaration (affidavit) on court paper stating that there is no loan against the flat and that the flat is not mortgaged anywhere. If there is a loan, a lawyer can advise you on what needs to be done.
3. After that, an initial agreement must be made with the seller. It will include details like the sale value and payment terms. All lawyers who handle Shilpakanan matters have a standard format. The agreement must be certified by a notary (the lawyer will arrange this).
4. A copy of the initial agreement must be submitted to ADSR – Durgapur office to obtain the flat's government valuation document (e-assessment slip). The lawyer will arrange this as well.
5. Then, the seller must submit an application at ADDA's office in City Centre for permission to transfer the flat lease. There is a transfer form that the seller must fill and submit along with some documents. ADDA office will inform about required document. ADDA will process the application and send a valuer to the flat for valuation. Based on the valuation, ADDA will generate a demand notice for the transfer fee. The fee (approx. 3 lac) can be paid by the buyer (through seller) through the ADDA PAY app. After realization of the fee, ADDA will issue the permission letter.
6. At Kolkata Housing Board office, the seller must submit an application for lease transfer approval along with:
 - Copies of the seller's original documents
 - Self-attested copies of your and the seller's PAN and Aadhaar cards
 - Copy of the government valuation (e-assessment slip) obtained from ADSR – Durgapur office
7. Once the letter and supporting documents are submitted, they will give a lease transfer form which the seller must fill. The seller's photo and signature must be attested by a gazetted officer. Submit the filled form back to the Housing Board. Then the file will be opened in the seller's name. Once permission is granted, buyer must pay the Housing Board fee based on the government valuation (approx 3 lacs), if the old e-assessment slip is more than a month old, a new valuation document will be required). Payment may be by cheque/DD/PO; current method may vary. After payment, Housing Board will issue the approval letter.
8. Processes 5 and 6 can run simultaneously, but Housing Board will not give the approval letter without ADDA's permission letter. The Housing Board approval letter mentions the ADDA permission letter number. Both processes can continue together, but before the Housing Board issues the approval letter, a copy of ADDA permission letter must be submitted to Housing Board office.

9. Once the above processes are completed and the financial transaction with the seller is settled, you can prepare the final sale deed (actually a leasehold right transfer deed) and register it at ADSR – Durgapur office.
10. After the flat is registered, make sure to get the flat's mutation done in DMC.
11. Register your name as the new owner in Shilpakanan Association. This step can be done at any stage. However, Shilpakanan Association also requires a NOC for lease transfer, for which a fee must be paid (Rs 40000).

Buyer must keep in mind that there are following cost involvement in addition to Flat value and registration charge:

1. ADDA NOC Charge- Rs 3 Lac
2. Housing Board NOC Charge Rs 3 Lac
3. Shilpakanan Society Charge Rs 40000/-
4. Overhead charges both at ADDA and Housing Board (without receipt)- Rs 80000/-

During the process, physical presence of both buyer and seller is required at each step. If the seller is located outside India then a power attorney (POA) through embassy (where the seller is located) to someone has to be issued by the seller. The authorised person can do all the process on behalf of the seller once the POA has been issued to him. Preferable person for POA is spouse, however, anyone can be an authorised person.

Entire process shall take 8-9 months if the buyer spends additional amount for ADDA & Housing board as mentioned above. In this year assembly election is scheduled during April-May 2026, hence expect delay of 3 months more.